

Mangla Plywood (Pvt.) Ltd. v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 20 November 2018 · Writ-C No. 64782 of 2009 · **Writ dismissed following Dev Prayag; additional-security challenge fails.**

HEADNOTE

A writ attacking an additional-security demand and clause 4.20(1) of the U.P. Electricity Supply Code, 2005 as ultra vires section 47(5) of the Electricity Act, 2003 is dismissed in terms of this Court's earlier judgment in Dev Prayag Paper Mill, which had already dismissed identical matters.

FACTUAL SUMMARY

M/s Mangla Plywood (Pvt.) Ltd. was called upon by the distribution licensee's letter dated 18 November 2009 to deposit additional security for electricity supply, failing which action would follow. It challenged that demand and also attacked clause (1) of para 4.20 of the U.P. Electricity Supply Code, 2005—allowing the consumer to opt when the licensee offers a choice—as ultra vires section 47(5) of the Electricity Act, 2003. Interim stay of the additional-security demand was granted in 2009.

HOLDING-UNITS

INTERPLAY · UP-2005::4.20

additional security / vires of clause 4.20 vis-à-vis s.47(5)

HOLDING

A writ challenging an additional-security demand and clause 4.20(1) of the U.P. Electricity Supply Code, 2005 as ultra vires section 47(5) of the Electricity Act, 2003 is dismissed in terms of Dev Prayag Paper Mill (Writ-C No. 30898 of 2016, 21.3.2017), which had already dismissed identical matters. ¶ 1

PRINCIPLE TAGS

additional-security A writ attacking an additional-security demand and clause 4.20(1) of the U.P. Electricity Supply Code, 2005 as ultra vires section 47(5) of the Electricity Act, 2003 is dismissed in terms of this Court's earlier judgment in Dev Prayag Paper Mill, which had already dismissed identical matters. ¶ 1

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>M/S Dev Prayag Paper Mill (Pvt.) v. State of U.P.</i> Writ-C No. 30898 of 2016 (21.3.2017)			Court	Referred